exhibit letter or number and where it is located, such as an exhibit attached to the compendium of exhibits, an exhibit to the Miller Declaration, or an exhibit to a declaration filed by the moving party. (Cal. R. Ct., Rule 3.1350(f)(2).)

The portions of deposition transcript excerpts a party cites and relies on are required to be marked in brackets or highlighted. (Cal. R. Ct., Rule 3.1116(c) ["The relevant portion of any testimony in the deposition must be marked in a manner that calls attention to the testimony."].) The deposition excerpts attached as Exhibit I to Plaintiff's compendium are not bracketed or highlighted. (*Compare to* Voss Decl. Exhs. I and J.)

Opportunity to Cure and Continued Hearing

The Court considers Plaintiff's Response to the SS to have technical defects that warrant the Court exercising its discretion to provide Plaintiff an opportunity to correct the deficiencies highlighted above and file a compliant Response to the SS. (*Parkview Villas, supra,* 133 Cal.App.4th at 1210-1216.) Plaintiff shall file an amended Response to SS and Additional Material Facts in compliance with Code of Civil Procedure § 437c(b)(3) and California Rules of Court, Rule 3.1350(f) and (h). Plaintiff shall also file an amended compendium of exhibits with the deposition excerpts that Plaintiff cites and relies on highlighted in accordance with California Rules of Court, Rule 3.1116(c). Plaintiff shall file these amended opposition papers **by July 10, 2026**. The hearing shall be continued to **9:00 a.m. on August 7, 2026**. The moving party may, but is not required, to file a supplemental reply to address Plaintiff's amended response to the SS to the extent not otherwise covered in the reply on file. Any supplemental reply shall be filed **at least 11 calendar days prior to the continued hearing**.

8. 9:00 AM CASE NUMBER: C24-03387
CASE NAME: REBECCA MOSCHELLA VS. ASSAEDI ASSAEDI
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: ASSAEDI, ASSAEDI SAIF
****TENTATIVE RULING:****

Before the Court is Defendants Assaedi Saif Ahmed, Alsaid Azzya, and Stop & Save Gasoline's Motion to Set Aside Defaults.

Procedural Background

Plaintiff filed her Complaint on December 13, 2024. It contains a single cause of action for breach of contract related to a settlement agreement entered into by the parties in an earlier action – Contra Costa Case No. C24-00738 (the "Underlying Action").

On January 10, 2025, Plaintiff filed a Proof of Service of Summons indicating that Defendant Stop & Save Gasoline was served on January 9, 2025. Thereafter, on February 20, 2025, Plaintiff sought and received Entry of Default against Stop & Save Gasoline.

On March 27, 2025, Plaintiff filed a Proof of Service of Summons indicating that Defendant Alsaid Azzya was personally served on February 17, 2025. On July 28, 2025, Plaintiff filed a Proof of Service of Summons indicating that Defendant Assaedi Saif Ahmed was personally served on July 26, 2025.

On November 25, 2025, Plaintiff sought and obtained Entry of Default against Defendant Assaedi Saif Ahmed.

On November 26, 2025, there was a CMC wherein counsel for Plaintiff and Defendants appeared via zoom. The minute order from that date notes that Defendant's demurrer was rejected "due to adding all defendants but one Defendant is in default status." (All caps removed.) The Court ordered counsel to meet and confer regarding stipulating to set aside default or indicating counsel should file a motion to set aside default against the defaulted Defendant (Stop & Save Gasoline).

On December 29, 2025, Plaintiff sought and obtained Entry of Default against Defendant Alsaid Azzya.

Plaintiff filed a Request for Court Judgment on January 22, 2026.

On March 4, 2026, Defendants filed the instant motion to set aside default.

<u>Legal Standard</u>

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure section 473 (b). "The statue includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

The 'discretionary' provision is set forth at the beginning of the statute:

> The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake,

> inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under CCP §473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

The 'mandatory' provision that relates to times when an attorney admits fault in causing the default is provided for in the later portion of the statute:

> Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

"[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any … resulting default [or default judgment] … entered against his or her client…." (Code Civ. Proc. § 473, subd. (b).)

"Under the traditional *discretionary* provisions of section 473, a party seeking relief on the basis of its attorney's neglect must show that the neglect was *excusable.*" (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) An entirely different standard exists under the mandatory relief provisions in section 473. "These *require* the court to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*." (*Ibid.*)

Initial Considerations

"[E]lectronic exhibits ***must include*** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.)

Defendant submits their Exhibits to Motion to Set Aside which consists of 70 pages of exhibits without any bookmarks or identification of what is attached where. This includes almost 50 pages of emails, which includes several separate chains in no discernable order, attached as a single exhibit without descriptions thereof or references in the brief to the particular pages of that exhibit being referenced.

Plaintiff's declaration in support of its opposition is 24 pages and includes 6 exhibits – none of which have bookmarks with a description thereof.

The above drastically increased the time required by the Court to review the evidence submitted by the Parties. Counsel are reminded to comply with the Rules of Court going forward.

<u>Analysis</u>

<u>Stop & Save Gasoline – Timeliness</u>

A motion to set aside a default "shall be made within a reasonable time, ***in no case exceeding six months***, after the judgment, dismissal, order, or proceeding was taken." (Cal. Code Civ. Proc. § 473 (b).) The "six-month time limit for granting statutory relief [under 473 (b)] is jurisdictional and the court may not consider a motion for relief made after that period has elapsed." (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42 citing *Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318; see also, *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1147.)

The Default against Stop & Save was entered on February 20, 2025. Accordingly, any motion to set aside needed to be filed on or before August 20, 2025. Defendant's motion was filed on March 4, 2026 – over six months too late.

Defendant Stop & Save argues that because the default was "entered more than six months ago, relief is sought under the Court's inherent equitable powers to set aside a default for extrinsic fraud." Defendant cites no law to indicated that the Court can set aside an untimely default under its "inherent equitable powers." Nor does Defendant explain why it would be entitled to such relief if it were available.

Every memorandum of points and authorities "must contain a statement of facts, *a concise statement of the law*, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. R. Ct. 3.1113 (b).) Rule 3.1113 prevents the "trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

"After six months from entry of default, a trial court may still vacate a default on equitable grounds even if statutory relief is unavailable." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.) Extrinsic fraud or mistake "usually arises when a party is denied a fair adversary hearing because he has been 'deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.'" (*Manson, Iver & York*, supra, 176 Cal.App.4th at 47 quoting *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.)

"Examples of extrinsic fraud are: … failure to give notice of the action to the other party, and convincing the other party not to obtain counsel because the matter will not proceed (and then it does proceed). [Citation.] The essence of extrinsic fraud is one party's preventing the other from having his day in court.'" (*Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1300 quoting *City and County of San Francisco v. Cartagena* (1995) 35 Cal.App.4th 1061, 1067.) "Extrinsic fraud only arises when one party has in some way fraudulently been prevented from presenting his or her claim or defense." (*Ibid.*)

Plaintiff did nothing to prevent Stop & Save from having its day in court. Defendant Stop & Save was properly served with the summons and complaint. Default was properly entered on February 20, 2025, and Defendant was served with notice of the request for default on that same date. Plaintiff did nothing to prevent Defendant from responding to the default. (*Sporn,* supra, 126 Cal.App.4th at 1300-01, finding no extrinsic fraud where "Plaintiff did nothing to prevent defendant from having its day in court. Defendant was properly served with the summons and complaint and the request to enter default.")

Defendant argues that Plaintiff's August 19, 2025, email indicating that Plaintiff would seek entry of default against Stop & Save and Mr. Azzya if the parties could not resolve the matter was 'fraudulent' and misleading since Plaintiff had already obtained Stop & Save's default – thereby supporting their argument of extrinsic fraud. Defendant Stop & Save, however, had already been served with the notice of default in February. As such, it had notice this statement was incorrect – and was likely a typo wherein Plaintiff meant to indicate that it would seek default against the two individual defendants: Mr. Azzya and Mr. Ahmed.

"An essential requirement to obtain relief from a judgment on grounds of extrinsic fraud is that defendant demonstrate a satisfactory excuse for not defending the action." (*Sporn*, supra, 126 CalAP..4th at 1301 citing *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982.) Defendant Stop & Save was given notice of the request for Default in February 2025. It did nothing to address the complaint until November 14, 2025 when it attempted to file a demurrer and motion to strike – which were rejected by the Court due to the default. Counsel then appeared at a CMC on November 26, 2025, wherein the Court noted the default and ordered counsel to (1) meet and confer regarding stipulating to set aside the default or (2) "file a motion to set aside default against Defendant."

No stipulation or motion to set aside was filed. Instead, Defendant Stop & Save then attempted to file another demurrer on December 4, 2025 (without first addressing the default) – which was again rejected due to the outstanding default. It was then notified of Plaintiff's request for entry of court judgment on January 22, 2026. It then waited an additional six weeks, until March 4, 2026, to file the instant motion to set aside. None of the above evidences a "satisfactory excuse for not defending the action."

Based on the above, the motion to set aside is **denied** as to Stop & Save.

Defendants Ahmed and Azzya

Plaintiff received defaults against Defendant Ahmed on November 25, 2025, and Defendant Azzya on December 29, 2025. As such, those defendants were required to file their motions for relief by May 25 and June 29, 2026, respectively. The motion for relief was filed on March 4, 2026 – as such, they are within the six-month absolute limit.

"[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any . . . resulting … dismissal entered against his or her client…." (Code Civ. Proc. § 473, subd. (b).) Relief under CCP § 473, subdivision (b) does not require Counsel to explain why he made the mistake, nor does it require him to show that the mistake was excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439.) Accordingly, 473(b) "at most demand[s] an attorney's candid, full, and straightforward acknowledgment of his or her error; they do not speak to the reasons for those errors." (*Ibid*.)

"Under the traditional *discretionary* provisions of section 473, a party seeking relief on the basis of its attorney's neglect must show that the neglect was *excusable.*" (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) An entirely different standard exists under the mandatory relief provisions in section 473. "These *require* the court to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*." (*Ibid.*)

Plaintiff argues that mandatory relief is not available to these defendants because counsel's declaration is 'not credible, establishes no causation, and admits nothing.'

Defendant's counsel, Mr. Sahelian, filed a declaration indicating that he was in contact with Plaintiff's counsel regarding the issues related to the failure to complete the payments of the settlement proceeds related to the Underlying Action. (Sahelian Decl. ¶¶ 3-9.) On October 25, 2024, Plaintiff's counsel emailed Mr. Sahelian and informed him that his client "instructed us to proceed with filing a breach of contract lawsuit against the defendants in this case and that is what we are going to do." (Sahelian Decl. Ex. 1 at p. 41.) Mr. Sahelian admits that he did not believe Plaintiff would file a second suit regarding this issue and "paid little attention to it…." (Sahelian Decl. ¶ 9.) He confirms: "This was solely my fault, not my clients.'" (*Ibid.*)

He then details other errors he made in attempting to file a demurrer and motion to strike on behalf of all three defendants when Defendant Stop & Save had already been defaulted. (*Id.* ¶ 12.) He indicates that after the CMC on November 26, 2025, he emailed Plaintiff's counsel to stipulate to set aside Stop & Save's default, but "Plaintiff did not cooperate." (*Id.* ¶ 15.) He then attempted to file another demurrer on December 2 – which was also rejected by the Court due to the outstanding defaults. (¶ 16.) He does not explain why he took this action instead of filing a motion to set aside the default – which is what the Court instructed him to do at the November 26 CMC.

Instead, Mr. Sahelian appears to have done nothing to protect his clients' interests for over three more months. During that time the third default was taken against Defendant Azzya. Finally, on March 4, 2026 – over three months after the Court instructed him to file a motion to set aside the defaults (unless a stipulation could be arranged), Mr. Sahelian finally filed the instant motion.

All the above demonstrates that the defaults were entered entirely due to Mr. Sahelian's actions – or, more properly, inactions. There is no indication that his clients were aware of what was going on or instructing him to delay and/or fail to respond to the complaint in this matter. Plaintiff does not present any evidence indicating as much either. Instead, the evidence appears to show that Mr. Sahelian acted completely unreasonably in failing to respond to the Complaint on behalf of his clients.

Under the mandatory provisions of § 473, the Court is "*require[d]* to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*." (*Metropolitan Service Corp.,* supra, 31 Cal.App.4th at 1487.) Here, Mr. Sahelian's actions are inexcusable – but that does not mean that his clients should be denied their day in court.

Plaintiff points out some discrepancies in Mr. Sahelian's declaration. While some of the dates outlined by Mr. Sahelian do not appear to track the record of events these inconsistencies do not detract from the overall statements that Mr. Sahelian acted negligently and that his actions directly impacted his clients. His clients should not be punished for their attorney's inadequate actions.

Based on the above, the motion is **granted** as to Defendants Ahmed and Azzya.

Conclusion

The California Supreme Court has set forth, over the years, the principles to be applied by a court involving motions for relief from default. Perhaps the three most significant are these:

- "[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." (*Au-Yang v. Barton* (1999) 21 Cal.4th 958, 963 quoting *Weitz v. Yankosky* (1966) 63 Cal.2d 849, 855.)
- "Because the law favors disposing of cases on their merits, 'any doubt in applying [CCP] section 473 must be resolved in favor of the party seeking relief from default." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 quoting *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)
- "[V]ery slight evidence will be required to justify a court in setting aside the default." (*Elston, supra*, 38 Cal.3d at 233

The instant motion is untimely as to Defendant Stop & Save Gasoline and therefore is **denied** as to it. The motion is **granted** as to Defendants Ahmed and Azzya. The defaults entered on November 25 and December 29, 2026, are set aside. Those individual Defendants shall file their responsive pleading within 10 days of notice of entry of the order on this motion.

9. 9:00 AM CASE NUMBER: C25-02254
CASE NAME: REID GREENLAW VS. TERESA TRUONG
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: GREENLAW, REID
****TENTATIVE RULING:****

Before the Court is Plaintiff's motion for trial preference, originally set for hearing on September 11, 2026 at 9:00 a.m. (one week before the hearing on Defendant's motion to compel arbitration.) Plaintiff moved *ex parte* for an order shortening time and the hearing was advanced to May 26, 2026. The Court understands there may have been some confusion regarding an initial rejection of the Plaintiff's *ex parte* application, which led to that application ultimately being unopposed. The Court also notes that Defendants have moved *ex parte* to advance the hearing on their pending motion to compel arbitration, currently set for September 28, 2026.

Plaintiff, relying on *Vinokur v. Superior Court* (1998) 198 Cal.App.3d 500 (*Vinokur*), contends the right to trial preference supersedes the right to arbitrate. (Motion at 7:11-14; Reply at 3:1-6.) *Vinokur* states, "The instant case thus presents a conflict between a statute enacted in order to ensure that senior litigants do not lose the right to have their cases litigated because of delays in setting trial dates [citation], and another statute intended principally as a device for easing a growing burden on our courts and to be encouraged or required 'whenever possible.' Under these circumstances section 36, which is 'mandatory and absolute in its application,' is unquestionably the controlling authority, and the competing interest of the arbitration statute must yield in order to ensure older litigants have their day in court. Notwithstanding the simplified and often efficient procedures of the arbitration mechanism, a party who is dissatisfied with an arbitration award retains the right to have a de novo trial (§ 1141.20), in which case the trial date will be set far beyond 120 days from the date the case was ordered into arbitration. Moreover, we find no convincing reason to accord trial preference to parties over age 70 when the amount in controversy exceeds $50,000, while denying the right simply because less money is